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Case Number: 25PSCV03083 Hearing Date: July 7, 2026 Dept: 6

CASE NAME: Xinne Nicole Medina, et al. v. Tamana Truck Lines, Inc dba Tamana Truck Lines, et al.

1. Claimant Jax Julian Ocampo's Petition for Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person with a Disability; and

2. Claimant Olivia Jade Ocampo's Petition for Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person with a Disability

TENTATIVE RULING

The Court GRANTS Claimant Jax Julian Ocampo's petition for minor's compromise. The Court directs Petitioner to submit a revised Form MC-351 correcting the defects identified herein for the Court's review and signature within five calendar days of the Court's ruling.

The Court GRANTS Claimant Olivia Jade Ocampo's petition for minor's compromise. The Court directs Petitioner to submit a revised Form MC-351 correcting the defects identified herein for the Court's review and signature within five calendar days of the Court's ruling.

Petitioner is ordered to provide notice of the Court's ruling and file proof of service of same within five calendar days of the Court's ruling.

BACKGROUND

This is an auto accident case. On August 25, 2025, plaintiffs Xinne Nicole Medina (Petitioner), Jax Julian Ocampo (Jax), a minor by and through his Guardian Ad Litem, Xinne Nicole Medina, Olivia Jade Ocampo (Olivia),^[1] a minor by and through her Guardian Ad Litem, Xinne Nicole Medina, filed this action against defendants Tamana Truck Lines, Inc dba Tamana Truck Lines, Taman Truck Lines, LLC, Clarence Smith, Jr. (collectively, Defendants), and Does 1 through 50, alleging causes of action for negligence and negligent entrustment.

On June 2, 2026, Petitioner filed a petition for approval of compromise of claim or action or disposition of proceeds of judgment for minor or person with disability on behalf of Jax.

On June 3, 2026, Petitioner filed a petition for approval of compromise of claim or action or disposition of proceeds of judgment for minor or person with disability on behalf of Olivia.

LEGAL STANDARD

Court approval is required for all settlements of a minor's claim or that of a person lacking the capacity to make decisions. (Prob. Code, §§ 2504, 3500, 3600 et seq.; Code Civ. Proc., § 372; see *Pearson v. Superior Court* (2012) 202 Cal.App.4th 1333, 1337.) "[T]he protective role the court generally assumes in cases involving minors, [is] a role to assure that whatever is done is in the minor's best interests [I]ts primary concern is whether the compromise is sufficient to provide for the minor's injuries, care and treatment." (*Goldberg v. Superior Court* (1994) 23 Cal.App.4th 1378, 1382.)

A petition for court approval of a compromise under Code of Civil Procedure section 372 must comply with California Rules of Court Rules 7.950, 7.951, and 7.952. The petition must be verified by the petitioner and contain a full disclosure of all information that has "any bearing upon the reasonableness" of the compromise or the covenant. (Cal. Rules of Court, rule 7.950.) The person compromising the claim on behalf of the person who lacks capacity, and the represented person, must attend the hearing on compromise of the claim unless the court for good cause dispenses with their personal appearance. (Cal. Rules of Court, rule 7.952, subd. (a).) An order for deposit of funds of a minor or person lacking decision-making capacity and a petition for the withdrawal of such funds must comply with California Rules of Court Rules 7.953 and 7.954. (Cal. Rules of Court, rule 3.1384; see also *Super. Ct. L.A. County, Local Rules*, rules 4.115-4.118.)

DISCUSSION – Jax

Form MC-350 (Rev. January 1, 2021)

Petitioner verified Jax's petition on a fully completed mandatory Judicial Council Form MC-350, using the current January 1, 2021 revision. (Cal. Rules of Court, rule 7.950.)

Settlement

Jax has agreed to settle this action against Defendants Tamana Truck Lines, Inc dba Tamana Truck Lines and Clarence Smith, Jr. in exchange for \$10,000.00, \$5,137.25 of which will go to Jax. If approved, \$2,500.00 will be paid in attorney fees, \$763.75 will be paid for reimbursement of litigation costs advanced by Jax's attorneys, and \$1,599.00 will be paid for medical expenses, leaving a balance of \$5,137.25 for Jax, to be deposited into an insured account in one or more financial institutions in this state, subject to withdrawal only on authorization of the Court.

The Court has reviewed the proposed settlement and finds the petition contains a full disclosure of all information that has any bearing upon the reasonableness of the settlement amount to Claimant.

Attorney Fees

Petitioner disclosed the retained attorney's information per Rule 7.951 of the California Rules of Court. (Petition, ¶ 17, subd. (b), Attach. 17a; Cal. Rules of Court, rule 7.951.) There is an agreement for services provided in connection with the underlying claim, a copy of which Petitioner submitted per Rule 7.951, subdivision (6), of the California Rules of Court. (Attach. 17a; Cal. Rules of Court, rule 7.951, subd. (6).)

Petitioner's counsel seeks to recover \$2,500.00 in attorney fees. (Petition, ¶ 13, subd. (a), Attach. 13a.) Petitioner's counsel provided a declaration addressing the reasonableness of the fee request per Rule 7.995, subdivision (c), of the California Rules of Court, accounting for the factors specified in Rule 7.955, subdivision (b). (Petition, Attach. 13a; Cal. Rules of Court,

rule 7.955, subds. (b)-(c).) Rule 7.955, subdivision (b), provides as follows:

(b) Factors the court may consider in determining a reasonable attorney's fee. In determining a reasonable attorney's fee, the court may consider the following nonexclusive factors:

- (1) The fact that a minor or person with a disability is involved and the circumstances of that minor or person with a disability.
- (2) The amount of the fee in proportion to the value of the services performed.
- (3) The novelty and difficulty of the questions involved and the skill required to perform the legal services properly.
- (4) The amount involved and the results obtained.
- (5) The time limitations or constraints imposed by the representative of the minor or person with a disability or by the circumstances.
- (6) The nature and length of the professional relationship between the attorney and the representative of the minor or person with a disability.
- (7) The experience, reputation, and ability of the attorney or attorneys performing the legal services.
- (8) The time and labor required.
- (9) The informed consent of the representative of the minor or person with a disability to the fee.
- (10) The relative sophistication of the attorney and the representative of the minor or person with a disability.
- (11) The likelihood, if apparent to the representative of the minor or person with a disability when the representation agreement was made, that the attorney's acceptance of the particular employment would preclude other employment.
- (12) Whether the fee is fixed, hourly, or contingent.
- (13) If the fee is contingent:
 - (A) The risk of loss borne by the attorney;
 - (B) The amount of costs advanced by the attorney; and
 - (C) The delay in payment of fees and reimbursement of costs paid by the attorney.
- (14) Statutory requirements for representation agreements applicable to particular cases or claims.

(Cal. Rules of Court, rule 7.955, subd. (b).) The Court addresses these factors below.

Amount of Fee in Proportion to Value of Services Performed

Jax's counsel contends the amount of the fee (25%) is proportional to the value of services performed because it represents the usual and customary rates of attorneys with comparable levels of skill and experience, plus the substantial risk involved by counsel's advancement of funds. (Olivarez Decl., ¶ 6, subd. (a).)

Novelty and Difficulty

Jax's counsel does not address this factor. (See generally, Olivarez Decl.)

Amount Involved and Results Obtained

Jax's counsel contends \$10,000.00 is a fair and equitable recovery. (Olivarez Decl., ¶ 6, subd. (c).)

Nature and Length of Professional Relationship

Jax's counsel does not address this factor. (See generally, Olivarez Decl.)

Experience, Reputation, and Ability of Counsel

Jax's counsel indicates that the firm has received various accolades for their work. (Olivarez Decl., ¶ 6, subd. (e).)

Time and Labor Required

Jax's counsel indicates that the firm has spent approximately 15-20 hours of work on this matter. (Olivarez Decl., ¶ 5, subd. (d).)

Acceptance of Case Precluding Other Employment

Jax's counsel does not address this factor. (See generally, Olivarez Decl.)

Contingency Fee

Jax's counsel indicates the contingency fee is 25%. (Olivarez Decl., ¶ 6.)

"California Rules of Court, rule 7.955 requires a trial court, in determining reasonable attorney fees, to balance an attorney's interest in fair compensation with the protection of the interests of a minor client. Thus, a trial court 'must give consideration to the terms of any representation agreement made between the attorney and the representative of the minor or person with a disability and must evaluate the agreement based on the facts and circumstances existing at the time the agreement was

made.' [Citation.]" (Schulz v. Jeppesen Sanderson, Inc. (2018) 27 Cal.App.5th 1167, 1176-1177, italics in original.)

The Court finds that Jax's counsel has adequately demonstrated the reasonableness of the fee award in light of the factors and circumstances in this case.

Medical Bills

Jax has incurred \$1,944.00 in medical expenses, but lien claimants have agreed to reduce the total to \$1,599.00. (Petition, ¶ 12, subd. (a).)

Costs

Petitioner's counsel seeks to recover \$763.75 in costs advanced. (Petition, ¶ 13, subd. (b).)

Amount to Be Paid to Claimant

The net amount to be paid to Jax is \$5,137.25. (Petition, ¶ 15.)

Disposition of Balance of Proceeds

Petitioner requests that the net proceeds be deposited into an insured account in one or more financial institutions in this state, i.e., Bank of America, subject to withdrawal only on authorization of the Court. (Petition, ¶ 18, subd., (b)(2), Attach. 18b, subd. (b)(2).)

Prognosis

Jax has recovered completely from the effects of the injuries. (Petition, ¶ 8, subd. (a).)

Court Appearance

California Rule of Court 7.952, subdivision (a), requires attendance by the petitioner and claimant unless the court for good cause dispenses with their personal appearance. (Cal. Rules of Court, rule 7.952, subd. (a).) The Court finds that the appearance of Jax is not required due to Jax's status as a minor. Petitioner must still appear for the hearing.

Order Approving Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person with a Disability (MC-351) & Order to Deposit Funds in Blocked Account (MC-355)

Jax filed a proposed order for approving the petition (Form MC-351) and a proposed order to deposit funds in a blocked account (Form MC-355). The Court notes a minor issue with Form MC-351. For Form MC-351, paragraph 8 of Form MC-351 lists two monetary amounts, i.e., \$5,137.25 and \$9,027.89. It is not clear why there are two numbers listed here. The \$9,027.89 appears nowhere else in Jax's submitted documents, so the Court assumes this was in error. Petitioner can address this issue by submitting a revised Form MC-351.

Based on the foregoing, the Court GRANTS the petition for minor's compromise for Jax. The Court directs Petitioner to submit a revised Form MC-351 correcting the defects identified herein for the Court's review and signature within five calendar days of the Court's ruling.

DISCUSSION – Olivia

Form MC-350 (Rev. January 1, 2021)

Petitioner verified the petition on a fully completed mandatory Judicial Council Form MC-350, using the current January 1, 2021 revision. (Cal. Rules of Court, rule 7.950.)

Settlement

Olivia has agreed to settle this action against Defendants in exchange for \$25,000.00, \$9,027.89 of which will go to Olivia. If approved, \$6,250.00 will be paid in attorney fees, \$1,050.69 will be paid for reimbursement of litigation costs advanced by Olivia's attorneys, and \$8,671.42 will be paid for medical expenses, leaving a balance of \$9,027.89 for Olivia, to be deposited into an insured account in one or more financial institutions in this state, subject to withdrawal only on authorization of the Court.

The Court has reviewed the proposed settlement and finds the petition contains a full disclosure of all information that has any bearing upon the reasonableness of the settlement amount to Claimant.

Attorney Fees

Petitioner disclosed the retained attorney's information per Rule 7.951 of the California Rules of Court. (Petition, ¶ 17, subd. (b), Attach. 17a; Cal. Rules of Court, rule 7.951.) There is an agreement for services provided in connection with the underlying claim, a copy of which Petitioner submitted per Rule 7.951, subdivision (6), of the California Rules of Court. (Attach. 17a; Cal. Rules of Court, rule 7.951, subd. (6).)

Petitioner's counsel seeks to recover \$6,250.00 in attorney fees. (Petition, ¶ 13, subd. (a), Attach. 13a.) Petitioner's counsel provided a declaration addressing the reasonableness of the fee request per Rule 7.995, subdivision (c), of the California Rules of Court, accounting for the factors specified in Rule 7.955, subdivision (b). (Petition, Attach. 13a; Cal. Rules of Court, rule 7.955, subds. (b)-(c).) Rule 7.955, subdivision (b), provides as follows:

(b) Factors the court may consider in determining a reasonable attorney's fee. In determining a reasonable attorney's fee, the court may consider the following nonexclusive factors:

- (1) The fact that a minor or person with a disability is involved and the circumstances of that minor or person with a disability.
- (2) The amount of the fee in proportion to the value of the services performed.
- (3) The novelty and difficulty of the questions involved and the skill required to perform the legal services properly.
- (4) The amount involved and the results obtained.

(5) The time limitations or constraints imposed by the representative of the minor or person with a disability or by the circumstances.

(6) The nature and length of the professional relationship between the attorney and the representative of the minor or person with a disability.

(7) The experience, reputation, and ability of the attorney or attorneys performing the legal services.

(8) The time and labor required.

(9) The informed consent of the representative of the minor or person with a disability to the fee.

(10) The relative sophistication of the attorney and the representative of the minor or person with a disability.

(11) The likelihood, if apparent to the representative of the minor or person with a disability when the representation agreement was made, that the attorney's acceptance of the particular employment would preclude other employment.

(12) Whether the fee is fixed, hourly, or contingent.

(13) If the fee is contingent:

(A) The risk of loss borne by the attorney;

(B) The amount of costs advanced by the attorney; and

(C) The delay in payment of fees and reimbursement of costs paid by the attorney.

(14) Statutory requirements for representation agreements applicable to particular cases or claims.

(Cal. Rules of Court, rule 7.955, subd. (b).) The Court addresses these factors below.

Amount of Fee in Proportion to Value of Services Performed

Olivia's counsel contends the amount of the fee (25%) is proportional to the value of services performed because it represents the usual and customary rates of attorneys with comparable levels of skill and experience, plus the substantial risk involved by counsel's advancement of funds. (Olivarez Decl., ¶ 6, subd. (a).)

Novelty and Difficulty

Olivia's counsel does not address this factor. (See generally, Olivarez Decl.)

Amount Involved and Results Obtained

Olivia's counsel contends \$25,000.00 is a fair and equitable recovery. (Olivarez Decl., ¶ 6, subd. (c).)

Nature and Length of Professional Relationship

Olivia's counsel does not address this factor. (See generally, Olivarez Decl.)

Experience, Reputation, and Ability of Counsel

Olivia's counsel indicates that the firm has received various accolades for their work. (Olivarez Decl., ¶ 6, subd. (e).)

Time and Labor Required

Olivia's counsel indicates that the firm has spent approximately 15-20 hours of work on this matter. (Olivarez Decl., ¶ 5, subd. (d).)

Acceptance of Case Precluding Other Employment

Olivia's counsel does not address this factor. (See generally, Olivarez Decl.)

Contingency Fee

Olivia's counsel indicates the contingency fee is 25%. (Olivarez Decl., ¶ 6.)

"California Rules of Court, rule 7.955 requires a trial court, in determining reasonable attorney fees, to balance an attorney's interest in fair compensation with the protection of the interests of a minor client. Thus, a trial court 'must give consideration to the terms of any representation agreement made between the attorney and the representative of the minor or person with a disability and must evaluate the agreement based on the facts and circumstances existing at the time the agreement was made.' [Citation.]" (Schulz v. Jeppesen Sanderson, Inc. (2018) 27 Cal.App.5th 1167, 1176-1177, italics in original.)

The Court finds that Olivia's counsel has adequately demonstrated the reasonableness of the fee award in light of the factors and circumstances in this case.

Medical Bills

Olivia has incurred \$24,183.89 in medical expenses, but lien claimants have agreed to reduce the total liens to \$8,671.42. (Petition, ¶ 12, subd. (a).)

Costs

Olivia's counsel seeks to recover \$1,050.69 in costs advanced. (Petition, ¶ 13, subd. (b).)

Amount to Be Paid to Claimant

The net amount to be paid to Olivia is \$9,027.89. (Petition, ¶ 15.)

Disposition of Balance of Proceeds

Petitioner requests that the net proceeds be deposited into an insured account in one or more financial institutions in this state, i.e., Bank of America, subject to withdrawal only on authorization of the Court. (Petition, ¶ 18, subd. (b)(2).)

Prognosis

Olivia has recovered completely from the effects of the injuries. (Petition, ¶ 8, subd. (a).)

Court Appearance

California Rule of Court 7.952, subdivision (a), requires attendance by the petitioner and claimant unless the court for good cause dispenses with their personal appearance. (Cal. Rules of Court, rule 7.952, subd. (a).) The Court finds that the appearance of Claimant is not required due to Claimant's status as a minor. Petitioner must still appear for the hearing.

Order Approving Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person with a Disability (MC-351) & Order to Deposit Funds in Blocked Account (MC-355)

Olivia filed a proposed order for approving the petition (Form MC-351) and a proposed order to deposit funds in a blocked account (Form MC-355).

Based on the foregoing, the Court GRANTS the petition for minor's compromise for Olivia.

CONCLUSION

The Court GRANTS Claimant Jax Julian Ocampo's petition for minor's compromise. The Court directs Petitioner to submit a revised Form MC-351 correcting the defects identified herein for the Court's review and signature within five calendar days of the Court's ruling.

The Court GRANTS Claimant Olivia Jade Ocampo's petition for minor's compromise.

Petitioner is ordered to provide notice of the Court's ruling and file proof of service of same within five calendar days of the Court's ruling.

[1] The Court refers to Jax and Olivia by their first names only to avoid confusion. No disrespect is intended.